

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION SUPPORTING THE EXPEDIENT REDEVELOPMENT OF THE BUILDING LOCATED AT 1602 CAPITOL AVENUE, CHEYENNE, WYOMING, COMMONLY REFERRED TO AS THE HISTORIC HYNDS BUILDING, AND THE LOT ADJACENT TO AND WEST OF THE HYNDS BUILDING KNOWN AS THE HOLE."

WHEREAS, on or about February 27, 2017, the Governing Body of the City of Cheyenne (City) adopted Resolution No. 5835, stating its commitment to spend up to Seven Hundred Fifty Thousand Dollars (\$750,000.00) toward the development of the Hole in order to provide parking for the Hynds Building located at 1602 Capitol Avenue, Cheyenne, Wyoming (the Hynds);

WHEREAS, the Historic Hynds Building is located on a site previously owned by former Wyoming Governor, United States Senator, and accomplished businessman, Francis E. Warren, who conveyed the site to Harry P. Hynds in 1917; and

WHEREAS, the Hynds was constructed as a state-of-the-art office building in 1919 by the distinguished entrepreneur and philanthropist, Harry P. Hynds, and designed by the venerable Wyoming architect, William R. Dubois, to utilize the most then-modern structural and aesthetic elements of the era; and

WHEREAS, after Hynds and Dubois completed the building's construction in 1922, the Hynds was utilized for various commercial purposes for approximately six (6) decades; since that time, however, the Hynds has remained unoccupied for more than three (3) decades, despite its landmark status, historic importance, premier location, and keystone value to the vitality of City of Cheyenne's downtown core; and

WHEREAS, given that the redevelopment of the Hynds is an essential element in the revitalization of the City's downtown core, the City, the Downtown Development Authority (DDA), the Downtown Development Foundation, and the Cheyenne-Laramie County Corporation for Economic Development (LEADS), altogether the Team, are mutually desirous of and committed to the redevelopment of the Hynds, and further acknowledge that to date, all purely private sector interest has been unfruitful absent sufficient public financial support; and

WHEREAS, the City is committed to working with its Team of economic development partners, and a prospective developer to be chosen from responses to a request for qualifications (RFQ) and subsequent request for proposals (RFP) prepared by the DDA, for undertaking the redevelopment of the Hynds and the Hole as one project (the Project), to overcome any remaining hurdles to the redevelopment, and thereby to ensure that the building becomes a beacon for further future economic development in the downtown core area; and

WHEREAS, an essential requirement of this redevelopment project is that potential occupants have available off-street parking, and the City is committed to working with the Team and the selected developer to meet this requirement in whatever way the parties determine best and most equitably meets the needs of such potential tenants, the developer, the parties, and the community at large; and

WHEREAS, in an effort to develop a solution to meet this requirement, LEADS has acquired the vacant property adjacent to and immediately west of the Hynds, such property being commonly referred as the Hole, for the stated purpose of utilizing such property as a parking facility for potential Hynds Building occupants; and

WHEREAS, to demonstrate the City's support of the Project, the City is willing to reiterate and restate its prior commitment to contribute up to Seven Hundred Fifty Thousand Dollars (\$750,000.00) to the DDA to assist with subsidizing the Project in whatever ways the DDA deems appropriate to support the Project, and which the City deems to meet legal requirements. The City funds would not be appropriated until the 2019 fiscal year and would not be spent unless and until the DDA selects a financially sound developer to who contractually commits to the Project; and

WHEREAS, in connection with the construction of the parking facility, the City, its economic development partners, and the developer acknowledge that various other agreements related to easements, shared walls, parking use, and other logistical items may need to be negotiated prior to the construction of the Project, but such details are beyond the scope of the current resolution; and

WHEREAS, on May 17, 2018, the DDA Board at its regular monthly meeting took the bold step to approve what has become known as the H2 Project involving, in part, the DDA acquiring assignable options to purchase on the Hynds and the Hole, preparing an RFQ/RFP, soliciting interest from developers on a national level, and then with the Team, select the best developer and proposed proposal to proceed with the Project. The DDA conditioned the H2 project on the City's commitment to this resolution; and

WHEREAS, such cooperative efforts by and through the City, its economic development partners, and the developer responsible for the H2 Project have the potential to restore the Hynds Building to its landmark status as a premier property in the downtown business core, thereby serving a keystone function for further economic and commercial development of the downtown business core area.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the City is willing to reaffirm its commitment to:

1. Grant the DDA Seven Hundred Fifty Thousand Dollars (\$750,000.00) for the Project allocated in whatever legal way the DDA deems necessary to attract a developer through the RFQ/RFP process for the Hynds and the Hole, consistent with the City UDC and Planning Department requirements on this CBD-zoned Project area; and
2. Negotiate in good faith to reach any ancillary agreements including, but not limited to, agreements for necessary easements, shared walls, parking use, and other logistical items that the parties require prior to redevelopment of the Hynds and the Hole; and
3. Require, as part of the developer requirements for the proposed Project, that the successful proposer provide office space on the ground floor of the Hynds and parking sufficient for the DDA at no cost for a minimum of five (5) years. The DDA's lease on its current office expires in 2019.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2018.

Marian J. Orr, Mayor

(SEAL)
Attest:

Carol Intlekofer, City Clerk